BRENDAN NGEHSI NEWANFORBI
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,** Defendants.	**Case No. STK-CV-UF-2026-0001032** **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF PLAINTIFF'S OPPOSITION TO DEMURRER TO FIRST AMENDED COMPLAINT** Time: 9:00 a.m. Dept.: 10A Judge: Hon. George J. Abdallah Complaint Filed: Feb. 10, 2026 Trial Date: TBD

DECLARATION OF BRENDAN NGEHSI NEWANFORBI

I, BRENDAN NGEHSI NEWANFORBI, declare:

1. I am the Plaintiff in this action and appear in propria persona. I am over the age of 18. I make this declaration in support of my Opposition to the demurrer of Defendants KATIE PALACIOS and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, to my First Amended Complaint ("FAC"). The matters stated below are within my personal knowledge, and if called as a witness I could and would competently testify to them.

2. **Class A CDL and documented commercial-trucking earning history.** I hold a valid California Class A Commercial Driver's License. From 2022 through 2024, I worked as a

commercial driver for at least six different carriers: PRP Logistics LLC, PODS Enterprises LLC, Tiger Lines, Rocha Transportation, Centerline Drivers LLC, and BND Transport, Inc. My federal W-2 records show actual, supervision-suppressed CDL earnings of $39,553 in 2022, $11,145 in 2023, and $55,894 in 2024. Drivers with my endorsements, route experience, and clean driving record working unrestricted in the Central Valley earn no less than $72,000 per year. The difference between $72,000 per year and my actual W-2 earnings reflects the wage suppression caused by Defendants' conduct, computed at no less than $32,447 (2022), $60,855 (2023), and $16,106 (2024) — with continuing losses of approximately $6,000 per month thereafter and through the present.

3. **Forced resignation and declined dispatches.** In January 2022, I was forced to resign my driving position at United Road after my CDCR parole agent threatened to issue a parole violation if I missed any HOPE group session for over-the-road work. Thereafter, when dispatchers offered me long-haul or multi-day routes, I was required to decline any dispatch that overlapped with a scheduled HOPE group session. I have specific memory of declining dispatches on identifiable dates, and I am prepared to produce dispatch-by-dispatch logs of declined runs and corresponding revenue lost if this Court directs me to amend with greater particularity.

4. **HOPE's blanket retention policy as I have personally observed it.** Beginning in 2020, I attended HOPE group sessions twice per week, individual sessions as scheduled, and Containment Team Meetings ("CTMs") on a recurring basis. Across more than five continuous years of attendance, I have never personally observed, and HOPE personnel have never told me about, a single HOPE participant who "completed" the program and was certified by HOPE as having satisfied completion criteria *prior to discharge from parole*. When I asked HOPE clinicians at intake and at multiple later points what objective criteria are used to determine completion, I was told that "completion is up to clinical judgment" and that participants "will know when they're done." No written criteria, rubric, or appeal process were ever provided to me.

5. **Palacios's August 2025 admission about lost homework.** In August 2025, I met with Defendant Katie Palacios in person at the HOPE Stockton office. During that meeting, I told Ms. Palacios that I had submitted multiple homework packets that HOPE had reported back as "partial" or "missing." Ms. Palacios stated, in substance, that HOPE "routinely loses" client homework packets, that this had been an "ongoing issue" at the Stockton site, and that the lost packets would be "reconstructed from memory" by clinicians for purposes of CTM reporting. She did not, however, correct or retract any of HOPE's prior CTM or progress-report characterizations of my homework as "partial," and HOPE continued to send "partial-completion" reports to my parole agent after that meeting.

6. **Palacios's role as Stockton site Director.** From my personal observation as a long-standing participant at HOPE Stockton, Ms. Palacios functions as the senior clinical and administrative authority at the Stockton site. She supervises the other HOPE Stockton clinicians; she signs or co-signs CTM and progress reports submitted to CDCR; she sets and adjusts session schedules; she handles client complaints; and she speaks for HOPE in communications with parole agents and DAPO supervisors. In my experience, decisions about whether a participant has "completed" treatment, whether to advance a participant through phases, and what to report to CDCR are made by Ms. Palacios or under her direct supervision.

7. **The November 2025 1502-DR.** On November 19, 2025, my parole agent conducted a discharge review using CDCR Form 1502-DR. I observed and reviewed the relevant portions of the form contemporaneously. The treatment-status section of the 1502-DR expressly identified HOPE's non-completion characterization and "partial homework" reports as the treatment-based predicate for continued DAPO supervision. The discharge decision was "Discharge Denied / No Action." I am prepared, if this Court directs amendment, to plead the verbatim or substantially verbatim text of the 1502-DR's treatment-based passages and to attach the document as an exhibit.

8. **Severe emotional distress.** I have experienced — and continue to experience — pervasive anxiety, humiliation, chronic sleep disturbance, hypervigilance, and ongoing distress arising from five years of mandatory participation in a program from which there is no achievable exit. I have specifically suffered acute distress on learning that what HOPE represented to me as individualized clinical assessment is in fact the mechanical output of a blanket retention policy that a California court has already characterized as one that "vitiates the Legislature's directive."

9. **No CDCR grievance procedure available against HOPE or Palacios.** I have reviewed the grievance regulations in Title 15, California Code of Regulations, including sections 3480 through 3486, and the relevant forms (CDCR Forms 602 and 602-2). Those procedures address grievances against the Department of Corrections and Rehabilitation and identify the "Office of Grievances" and "Office of Appeals" as the responsible CDCR entities. No provision of those regulations identifies HOPE or Palacios as a respondent or contemplates an administrative remedy for the damages, restitution, declaratory, or injunctive relief I seek from them in this action. To the extent CDCR considered any complaint I made about HOPE, it deferred to HOPE's clinical characterizations, consistent with the practice documented in the In re Dwyer order.

10. **Title 15 CCR § 3574(f)(1) in force during the 2025 review.** I have reviewed Title 15 of the California Code of Regulations, section 3574, including subdivision (f)(1), as amended effective April 17, 2025. Subdivision (f)(1) states that "[t]reatment completion and parole discharge are legally separate decisions." That amendment was in force at the time of the November 19, 2025 1502-DR review and at all times material to my discharge denial.

11. **Dwyer order — personal awareness and re-application of policy.** I have reviewed the order in In re Frederick Dwyer, San Mateo County Superior Court Case No. SC-080355A, entered March 20, 2023. That order documents — based on sworn testimony from HOPE's own Executive Director of Clinical Training, Dr. Cristina Loree — HOPE's institutional position that

"continuous connection to treatment is required for all sex offender parolees," and the Dwyer court's conclusion that this policy "vitiates the Legislature's directive" under Penal Code section 3008(d)(2). From my personal observation as a HOPE Stockton participant, HOPE applied the same policy to me throughout 2024 and 2025, with no apparent change in approach following the Dwyer order or the April 17, 2025 regulatory amendment.

12. **Billing rates and fee-for-service structure.** I have reviewed the Alameda County Probation Department Procurement Contract No. 26374, First Amendment (approved January 9, 2024), which sets the per-unit billing rates governing CASOMB-certified outpatient providers in this region. The rates include $100.00 per 90-minute group session, $100.00 per Containment Team Meeting per client, and $200.00 per individual psychotherapy session. There is no completion-based payment and no incentive for a participant to be certified as complete. At two group sessions per week alone, HOPE's baseline annual revenue from my participation is $10,400. Over my December 2, 2020 to December 2, 2030 parole term, that is more than $104,000 in revenue from group sessions alone, all of which terminates if I am successfully discharged.

13. **Relief I am not seeking from this Court.** I have read the prayer for relief in my FAC. I do not in this action ask this Court to (a) order CDCR to terminate my parole supervision; (b) order CDCR to change my current parole conditions; or (c) order CDCR to discharge me. I am seeking compensatory and punitive damages, restitution, declaratory relief directed at HOPE's policy as applied to me, and injunctive relief directed at HOPE (requiring individualized completion criteria, accurate reporting, and an appeal mechanism). I understand that habeas corpus does not lie against private parties and cannot award damages.

14. **Additional facts available for amendment.** In the event the Court determines that any portion of the FAC requires further particularity, I am prepared to allege, in an amended pleading, the following additional facts presently within my knowledge:

a. The verbatim or substantially verbatim text of the 1502-DR passages identifying HOPE's non-completion recommendation as the treatment-based predicate for continued supervision, with the document attached as an exhibit;

b. Specific dates, times, and identities of HOPE clinicians making the misrepresentations alleged in the First Cause of Action, beyond those already pleaded;

c. Dispatch-by-dispatch logs of declined CDL assignments with corresponding revenue lost;

d. Specific statements by Defendant Palacios and other HOPE clinicians after August 2025 that I contend evidence ongoing retaliation in response to my legal complaints;

e. Records and communications corroborating Defendant Palacios's admission that HOPE routinely loses client homework packets;

f. Any informal complaints I made to my parole agents and the unit supervisors at the Stockton 2 GPS parole unit regarding HOPE's conduct, and the responses I received indicating that CDCR defers to HOPE's clinical characterizations; and

g. Additional facts regarding Defendant Palacios's role, authority, and decision-making at the Stockton site, relevant to her status as a managing agent of HOPE under Civil Code section 3294(b).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 22, 2026, at Stockton, California.

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BRENDAN NGEHSI NEWANFORBI

Declarant